



Sexual Harassment Policy

Purpose-

The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 is a legislative act in India that seeks to protect women from sexual harassment at their place of work. It was passed by the Lok Sabha (the lower house of the Indian Parliament) on 3 September 2012. It was passed by the Rajya Sabha (the upper house of the Indian Parliament) on 26 February 2013.

The purpose of this policy is to educate employees about types of sexual harassment and the mechanism available for prevention and redressal of complaints.

Scope

The Policy intends to ensure that no woman Employee is subjected to sexual harassment and it is applicable to all Employees of Devstringx Technologies Pvt Ltd and its fraternity. "Employee" as referred to in this Policy covers all employees of Devstringx Technologies Pvt Ltd, whether permanent or temporary, probationary or part-time or working as a consultant/Trainee or on a voluntary basis or engaged through a contractor or agent, including employees at Devstringx Technologies Pvt Ltd Branch Office / Authorised Persons.

Where Sexual Harassment occurs against any female Employee as a result of an act by a third party or outsider while on official duty, Devstringx Technologies Pvt Ltd will take all necessary and reasonable steps as per the applicable rules and regulations, to initiate action at the workplace of the third party or outsider. This Policy shall be applicable to any allegation of Sexual Harassment at Devstringx Technologies Pvt Ltd premises including any place visited by an Employee arising out of or during the course of employment and/or transportation provided by Devstringx Technologies Pvt Ltd ("Workplace").

Definitions-

- "Act" means "The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013" and any amendment thereto.
- "Aggrieved Woman" means any female Employee of Devstringx Technologies Pvt Ltd or any woman who alleges to have been subjected to any act of Sexual Harassment at the Workplace.
- "Internal Complaints Committee" means a committee by that name, constituted by the Board of Devstring Technologies Pvt Ltd as per the provisions of the Act.
- "Respondent" means the person against whom the allegation of Sexual Harassment has been made by the Aggrieved Woman.



- “Sexual harassment” means and includes:-
 1. "... such unwelcome behaviour of a male employee towards a female employee (whether directly or by implication) as:
 - Ø Physical contact and advances
 - Ø a demand or request for sexual favours;
 - Ø sexually coloured remarks;
 - Ø showing pornography;
 - Ø any other unwelcome physical, verbal or non-verbal conduct of sexual nature."
 2. Implied or explicit promise of preferential treatment to a woman employee in her employment; or
 3. Implied or explicit threat of detrimental treatment to a woman employee in her employment; or
 4. Implied or explicit threat to a woman employee about her present or future employment status; or
 5. Interference with her work or creating an intimidating or offensive or hostile work environment for her; or
 6. Humiliating treatment likely to affect her health or safety.

Constitution of Internal Complaint Committee-

Members-

- Company has established an Internal Committee to deal with issues relating to sexual harassment at the workplace which consists of the following 4 members -
 - A women employee employed at a senior level as the Presiding Officer of the Internal Committee.
 - Minimum of two other employees (one male and another female)
 - One member from amongst non-governmental organization or associations committed to the cause of women or a person familiar with the issues relating to sexual harassment.

Term of the Internal Complaints Committee-

- The term of the office of Internal Committee will be for a period not exceeding three years and after the expiry of the said period the Company shall reconstitute the internal committee.



Removal of members of the Internal Committee-

- If any member or the presiding officer of the Internal Committee–
 - Discloses information regarding the contents of the complaint, identity and addresses of the aggrieved person, the respondent (against whom the complaint is filed) witnesses, or any matter relating to conciliation and inquiry proceedings, recommendations of the internal committee, action taken by the employer, or
 - Has been convicted for an offense or an inquiry into an offense under any law is pending against him, or
 - Has been found guilty in any disciplinary proceedings or such proceeding is pending against him, or
 - Has abused his position as to render his continuance in office prejudicial to the public interest, such a member or the presiding officer shall be removed from the Internal committee and the vacancy or any casual vacancy shall be filled by fresh nomination.

Powers & Duties of Committee-

The Internal Committee shall:

- Ensure implementation of this policy.
- Ensure and supervise proper constitution and functioning of the Internal Committee.
- Not to disclose information or publicize the content of complaint or inquiry proceedings, except for information regarding justice secured without disclosing the identity of the aggrieved.

Grievance Redressal Program-

- Any aggrieved person, may make, in writing, complaint of sexual harassment at workplace to the Internal Committee within a period of three months from the date of the incident or in the case of a series of incidents, within a period of three months from the date of the last incident. The period for filing the complaint may be further extended for reasons to be recorded in writing, if it is satisfied that the circumstances were such which prevented the person from filing a complaint within the said period.
- Where the aggrieved person is unable to make a complaint on account of her physical or mental incapacity or death or otherwise, her legal heir or such other person as may be prescribed may make a complaint.
- Complaints should be in writing.
- The Complainant will be afforded full confidentiality at this stage and contents of the complaint, identity/address of the aggrieved, respondent, any witness, recommendations

of the Internal Committee or actions taken by the employer shall not be published communicated or made known to the press, public or media at any time.

- Immediately upon receipt of the Complaint, and within not more than two (2) working days, the Member of the Internal Committee to whom the Complaint is made shall communicate the same to the Presiding Officer of the Internal Committee.
- Within a period of 5 working days from the date of such communication, the Presiding Officer shall convene a meeting of the Internal Committee.
- The Internal Committee may before initiating an inquiry and at the request of the aggrieved person take steps to settle the matter between her and the respondent through conciliation. Provided that no monetary settlement shall be made as a basis of conciliation. The inquiry shall be completed within a period of ninety (90) days.
- Where a settlement has been arrived at under sub-section, the Internal Committee shall record the settlement that arrived and forward the same to the employer to take action as specified in the recommendation.
- The Internal Committee shall provide the copies of the settlement as recorded under sub-section to the aggrieved person and the respondent.
- Where a settlement is arrived at under sub-section, no further inquiry shall be conducted by the Internal Committee.
- The Internal Committee shall examine the complaint and undertake investigation of the complaint after giving opportunities to the complainant to present the case and the respondent to submit his version. The Internal Committee may examine the witnesses from both sides and the respondent shall have the opportunity to cross-examine the witnesses.
- On completion of the inquiry, the Internal Committee shall provide a report of its findings to the employer, within a period of 10 days from the date of completion of the inquiry and this report should be made available to the concerned parties.
- The Internal Committee shall, where the respondent is an employee, proceed to make inquiry into the complaint in accordance with the provisions of the service rules applicable to the respondent and where no such rules exist, in such manner as may be prescribed.
- Where the aggrieved person informs the Internal Committee that any term or condition of the settlement arrived at under sub-section has not been complied with by the respondent, the committee shall proceed to make an inquiry into the complaint or, as the case may be, forward the complaint to the police.
- Both the parties shall, during the course of inquiry, be given an opportunity of being heard and a copy of the findings shall be made available to both the parties enabling them to make representation against the findings of the Internal Committee.
- For the purpose of making an inquiry under sub-section, the Internal committee shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 when trying a suit in respect of the following matters: -



- i. Summoning and enforcing the attendance of any person and examining him on oath.
- ii. Requiring the discovery and production of documents; and
- iii. Any other matter which may be prescribed.

Decision & Communication-

In the event allegations made in the complaint are proved against the employee, the Internal Committee shall recommend to management -

- To treat, and take action for, sexual harassment.
- To deduct from the salary or wages of the respondent such sum, as may be considered appropriate, to be paid to the aggrieved person or her legal heirs.

Malicious Complaint-

If the Internal Committee finds, after an inquiry, that the complaint is malicious or false, it may recommend to management to take action according to the service rules. A mere inability to substantiate a complaint or provide adequate proof need not attract action against the complainant.

Appeal-

- Appeal can be made within 7 days from the decision communicated.
- Either party can make an appeal.
- Committee will meet again to review and discuss additional information provided.
- Committee will share the final decision.

Committee Team Member Names-

1. Chairperson - Sonia Sharma
2. Second Member - Tanu Sehgal
3. Third Member - Manan Sharma
4. External Member - Harshita Agarwal Sharma